

SENATE No. 414

The Commonwealth of Massachusetts

PRESENTED BY:

Michael O. Moore

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to local approval for charter schools.

PETITION OF:

NAME:

Michael O. Moore

DISTRICT/ADDRESS:

Second Worcester

SENATE No. 414

By Mr. Moore, a petition (accompanied by bill, Senate, No. 414) of Michael O. Moore for legislation relative to local approval for charter schools. Education.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 320 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to local approval for charter schools.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 89 of chapter 71 of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by inserting after the definition of “district” the following
3 definition:-

4 “Local approval”, an action taken by a locally elected body to authorize local funds being
5 allocated for a charter school, which may be approved by the following actions: by the approval
6 of an elected school committee for each school district from which the charter school is expected
7 to enroll students, by the approval of voters at a town meeting of each of the towns from which
8 the charter school is expected to enroll students, or in the case of a city without an elected school
9 committee, by a vote of the city council, by whatever title it may be known, and the Mayor.

SECTION 2. Said section 89 of said chapter 71, as so appearing, is hereby further amended by adding the following paragraph:-

Notwithstanding the foregoing, only commonwealth charter school applications that have received the local approval of every town or school district expected to enroll students shall be funded pursuant to the provisions of the section. Approval of an application by the board without local approval shall be funded by the board, exclusive of Chapter 70 or other local funds. Applications that have received the aforesaid local approval for a commonwealth charter school shall comply with the provisions for such submission pursuant to the applicable provisions of the section.

SECTION 3. This act shall apply only to commonwealth charter school applications submitted after the date upon which the act becomes effective.